**AFRICAN SOLIDARITY CIVIC ORGANISATION (ASCO)**

Registered NPC: 2026/521895/08 | Tax Reference: 9322812265
SARS PBO Exemption: 930092287 | Section 18A Approved
49 Rif Road, Manor Gardens

Durban, KwaZulu-Natal

4001

info@africansolidaritycivic.org | www.africansolidaritycivic.org

# CONSTITUTION OF THE AFRICAN SOLIDARITY CIVIC ORGANISATION (ASCO)

**GOVERNING DOCUMENT**

FINAL HARMONISED GOVERNANCE VERSION — FOUR-DIRECTOR BOARD STRUCTURE

This Constitution establishes the governance framework, rights, responsibilities and operating principles of the African Solidarity Civic Organisation.

CONSTITUTION OF THE AFRICAN SOLIDARITY CIVIC ORGANISATION (ASCO)

## PREAMBLE

We, the members of the African Solidarity Civic Organisation (ASCO), united by the principles of African solidarity, constitutional democracy, human dignity, social justice, equality, accountability, and sustainable development, hereby adopt this Constitution to guide the governance, administration, and operations of the Organisation. ASCO exists to promote social cohesion, good governance, community development, human rights, environmental sustainability, youth empowerment, women's empowerment, anti-corruption initiatives, public participation, and peaceful coexistence among all people living in Africa.

## ARTICLE 1 — NAME

The name of the organisation shall be: African Solidarity Civic Organisation Hereinafter referred to as ASCO.

## ARTICLE 2 — LEGAL STATUS

ASCO is a non-profit organisation established and registered in accordance with the laws of the Republic of South Africa. The Organisation shall have perpetual succession and may own property, enter into contracts, institute legal proceedings, and perform all lawful acts necessary to achieve its objectives.

## ARTICLE 3 — VISION

To build a united, just, inclusive, peaceful and sustainable Africa in which every person's dignity is upheld, communities participate in democratic governance, and shared prosperity is advanced through solidarity and sustainable development.

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## ARTICLE 4 — MISSION

ASCO's mission is to promote social justice, human dignity, constitutional democracy, active citizenship, African solidarity, community development, peace, human rights, environmental sustainability, and the empowerment of youth and women through advocacy, civic education, humanitarian and grassroots initiatives, partnerships, and practical interventions. ASCO shall pursue this mission through the following activities:

- Promote African solidarity and social cohesion.
- Fight corruption and maladministration.
- Promote constitutional democracy and good governance.
- Protect human rights.
- Promote peace and justice.
- Combat gender-based violence and domestic violence.
- Promote environmental sustainability and climate action.
- Advance youth development.
- Promote women's empowerment.
- Advocate for quality education and healthcare.
- Promote entrepreneurship and economic empowerment.
- Encourage public participation in governance.
- Strengthening partnerships with government, civil society, business and international organisations.

## ARTICLE 5 — VALUES

ASCO shall be guided by:

- Integrity
- Accountability
- Transparency
- Professionalism
- Ubuntu
- Non-racialism
- Non-sexism
- Inclusivity
- Respect
- Excellence

•Service to communities

## ARTICLE 6 — OBJECTIVES

ASCO shall:

1. Promote civic education.
2. Encourage active citizenship.
3. Advocate against corruption.
4. Support vulnerable communities.
5. Promote environmental protection.
6. Support disaster relief initiatives.
7. Promote peace-building.
8. Encourage youth leadership.
9. Promote cultural exchange programmes.
10. Build partnerships nationally and internationally.

## ARTICLE 7 — THE FOUNDER AND CO-FOUNDER

7.1 Founder The Founder is the individual who conceived, established and led the formation of ASCO. The Founder shall:

- •Safeguard the founding vision and values of ASCO.
- •Provide strategic leadership and institutional guidance.
- •Serve as Patron and Custodian of the Organisation.
- •Be recognised permanently in all official records of ASCO.
- •Participate in strategic meetings of the Organisation.
- •Address the Annual General Meeting.
- •Advise the Board on constitutional matters.
- •Recommend constitutional amendments where necessary. Unless removed through due legal process for serious misconduct or incapacity, the title of Founder shall remain permanent. 7.2 Co-Founder The Co-Founder shall be recognised as having played a significant role in establishing ASCO. The Co-Founder shall:
- •Assist in preserving the founding vision.
- •Support strategic development.
- •Serve as an ambassador of ASCO.
- •Participate in constitutional reviews.

- Advise the Board on institutional development. The title of Co-Founder shall be permanent and honorary. 7.3 Protection of Founding Status Neither the Founder nor the Co-Founder may lose their founding status through resignation from operational positions, provided such recognition does not exempt them from accountability under the law.

## ARTICLE 8 — GOVERNANCE

The Organisation shall be governed by a Board of Directors. The Board shall provide strategic oversight, ensure good governance, protect ASCO's mission and assets, and exercise accountability in accordance with the Memorandum of Incorporation (MOI), this Constitution and applicable law. Executive Management is responsible for day-to-day management. Directors serving in executive capacities shall distinguish between decisions made in their Board governance capacity and decisions made in their executive management roles.

## ARTICLE 9 — EXECUTIVE DIRECTOR

The Executive Director shall:

- Be the Chief Executive Officer.
- Manage day-to-day operations.
- Implement Board resolutions.
- Manage staff and programmes.
- Represent ASCO externally.
- Prepare annual operational plans.
- Manage finances subject to Board approval. The Founder may serve as Executive Director where appointed by the Board.

## ARTICLE 10 — BOARD OF DIRECTORS

The Board shall consist of not fewer than three Directors, unless the MOI lawfully specifies a higher number, and may comprise additional Directors in accordance with the MOI, this Constitution and applicable law. Its responsibilities include:

- Strategic planning.
- Financial oversight.
- Risk management.
- Appointment of senior management.
- Policy approval.
- Compliance with legislation.

## ARTICLE 11 — OFFICE BEARERS

The Board shall elect:

- Chairperson
- Deputy Chairperson
- Treasurer
- Secretary
- Additional Directors as required

## ARTICLE 12 — MEMBERSHIP

Membership shall be open to any person who supports the objectives of ASCO without discrimination.

## ARTICLE 13 — GENERAL MEETINGS

The Annual General Meeting shall:

- Receive annual reports
- Receive audited financial statements
- Elect Directors where applicable.
- Consider constitutional amendments.

## ARTICLE 14 — FINANCES

Funds may be obtained through:

- Donations
- Grants
- Sponsorships
- Membership fees
- Fundraising
- Investments approved by the Board No profits shall be distributed to members.

## ARTICLE 15 — ETHICS

Every member shall:

- Act honestly.
- Avoid corruption.
- Avoid conflicts of interest.
- Respect confidentiality.

•Promote the reputation of ASCO.

## ARTICLE 16 — DISCIPLINARY PROCEDURES

Any member guilty of misconduct may be suspended or expelled after a fair disciplinary process.

## ARTICLE 17 — AMENDMENTS

This Constitution may be amended by a two-thirds majority at a properly constituted General Meeting. No amendment may remove the historical recognition of the Founder or Co-Founder without their written consent or a competent court order.

## ARTICLE 18 — DISSOLUTION

Upon dissolution, all remaining assets shall be transferred to another registered non-profit organisation with similar objectives and shall not be distributed to members.

## ARTICLE 19 — INTERPRETATION

Where uncertainty exists regarding this Constitution, the Board shall interpret it in a manner consistent with the Constitution of the Republic of South Africa and the founding values of ASCO.

## ARTICLE 20 — MEMBERSHIP PROCEDURES

20.1 Admission to membership shall be open to any person who supports the objectives and values of ASCO and meets any lawful requirements approved by the Board.

20.2 Applications for membership shall be made in the form and manner determined by the Board. The Board may approve or decline an application for reasonable and lawful grounds.

20.3 Members shall have the right to participate in General Meetings, vote where eligible, receive approved reports, and propose matters for consideration in accordance with this Constitution.

20.4 Members shall uphold this Constitution, comply with lawful decisions of the Organisation, act in ASCO's best interests, and pay any approved membership fees.

20.5 A member may resign by written notice. Membership may be suspended or terminated only in accordance with a fair process and the disciplinary provisions of this Constitution.

## ARTICLE 21 — GENERAL MEETINGS AND VOTING

21.1 The Annual General Meeting shall be held once in each financial year at a time and place determined by the Board.

21.2 Members shall receive at least fourteen days' notice of a General Meeting, stating the date, time, venue or meeting platform, and the business to be considered.

21.3 The quorum for a General Meeting shall be one-third of voting members, subject to any minimum required by applicable law. If a quorum is not present, the meeting may be adjourned and reconvened on notice.

21.4 Each eligible member shall have one vote. Decisions shall be made by a simple majority unless this Constitution requires a higher threshold. The chairperson shall have a casting vote where votes are equal.

21.5 A Special General Meeting may be called by the Board or on written request of at least one-third of eligible voting members, stating the purpose of the meeting.

## ARTICLE 22 — BOARD COMPOSITION AND PROCEDURES

22.1 The Board shall consist of not fewer than three Directors, unless the MOI lawfully specifies a higher number, and may comprise additional Directors in accordance with the MOI, this Constitution and applicable law. The current Board structure comprises four Directors, subject to any lawful requirements of the MOI or applicable law. Operational or management titles, including Head of Legal Services, Head of Organising and Mobilisation, Director: ICT and Communications, and Director: People and Culture, shall not by themselves confer statutory Director status unless the person has been formally appointed or elected as a Director in accordance with the MOI, this Constitution and applicable law. The persons signing this Constitution may include founding members, Directors, office-bearers, or authorised signatories; their capacity shall be recorded in the relevant official resolution or register.

22.2 Directors shall be appointed, elected or nominated in accordance with the MOI, this Constitution and applicable law, using the procedure applicable to ASCO from time to time.

22.3 Directors shall serve for terms determined by the General Meeting and may be re-elected or re-appointed, subject to the Organisation's needs and applicable law.

22.4 The Board shall meet at least four (4) times in each financial year, with additional meetings convened when necessary. Reasonable notice shall be given. The quorum shall be fifty percent (50%) plus one of the serving Directors, unless the MOI provides otherwise. Decisions shall be made by majority vote. The Chairperson shall have a casting vote only where permitted by the MOI.

22.5 A Director may resign by written notice or be removed for serious misconduct, incapacity, persistent non-attendance, or other lawful grounds after a fair process. Vacancies may be filled by the Board until the next General Meeting.

22.6 The Board may establish committees as required for effective governance, including a Finance and Procurement Committee and, where appropriate, Finance and Audit, Governance and Ethics, Human Resources, Resource Mobilisation, Programmes and Risk committees. Each committee shall operate under written terms of reference approved by the Board and shall report to the Board. Delegation to a committee does not remove the Board's ultimate accountability for governance and oversight.

## ARTICLE 23 — DUTIES OF OFFICE-BEARERS

23.1 The Chairperson shall lead the Board, preside over meetings, promote good governance, and ensure that Board decisions are properly implemented and monitored.

23.2 The Deputy Chairperson shall support the Chairperson and perform the Chairperson's functions when the Chairperson is unavailable.

23.3 The Treasurer shall oversee financial reporting, monitor financial controls, and report financial matters to the Board and General Meeting.

23.4 The Secretary / Board Secretary shall maintain minutes, notices, registers, official correspondence, Board documentation and other governance records, subject to any statutory responsibilities assigned to a Company Secretary under the MOI or applicable law.

23.5 Office-bearers shall act collectively through the Board and shall remain accountable to the Organisation.

## ARTICLE 24 — FINANCIAL GOVERNANCE

24.1 The financial year of ASCO shall be determined by the Board and recorded in the Organisation's governance documents.

24.2 ASCO shall maintain a bank account or accounts in its name. Payments shall be authorised by at least two approved signatories, subject to the Organisation's financial policies.

24.3 The Board shall approve budgets and monitor expenditure. No funds shall be used for a purpose inconsistent with ASCO's objectives.

24.4 The Organisation shall keep proper accounting records and prepare annual financial statements. The statements shall be independently reviewed or audited where required by law, donor conditions, or a resolution of the Board or General Meeting.

24.5 Members may inspect governance and financial records at reasonable times, subject to confidentiality, privacy, and applicable legal restrictions.

## ARTICLE 25 — CONFLICTS OF INTEREST

25.1 A Director, office-bearer, employee, or member involved in a decision shall disclose any actual, potential, or perceived personal or financial interest.

25.2 A person with a conflict shall not improperly influence the decision, shall leave the meeting when requested, and shall not vote on the matter unless permitted by law and the Board's conflict-of-interest policy.

25.3 Disclosures and the steps taken to manage them shall be recorded in the minutes and in a register of interests.

## ARTICLE 26 — RECORDS, REPORTING AND TRANSPARENCY

26.1 ASCO shall maintain accurate records of members, meetings, resolutions, finances, assets, policies, contracts, and statutory filings.

26.2 The Board shall provide appropriate annual reports to members and shall make required regulatory and donor reports within applicable deadlines.

26.3 Confidential information and personal information shall be handled responsibly and in accordance with applicable law.

## ARTICLE 27 — DISPUTE RESOLUTION

27.1 A dispute concerning the interpretation or implementation of this Constitution shall first be referred to the Board for good-faith internal resolution.

27.2 If the dispute is not resolved, the Board may appoint an impartial mediator or refer the matter to a Special General Meeting. The parties shall attempt mediation before commencing legal proceedings, except where urgent legal relief is required.

27.3 Nothing in this Article prevents a person from reporting unlawful conduct or exercising a legal right.

## ARTICLE 28 — COMPLIANCE AND REVIEW

28.1 The Organisation shall comply with the laws of the Republic of South Africa, its registration requirements, the MOI, donor obligations, and this Constitution. This Constitution is an internal governance instrument and shall be read subject to the MOI and applicable law. If a conflict arises, the applicable law and the MOI shall prevail to the extent required.

28.2 The Board shall review this Constitution periodically and recommend amendments where necessary to maintain lawful, effective, and accountable governance.

## CHAPTER 21 — SARS PUBLIC BENEFIT AND FIDUCIARY REQUIREMENTS

21.1 The sole or principal object of ASCO is to carry on one or more public benefit activities in a non-profit manner and with an altruistic or philanthropic intent, for the benefit of or widely accessible to the general public.

21.2 ASCO shall identify its primary and additional public benefit activities with reference to the applicable Parts of the Ninth Schedule to the Income Tax Act, including humanitarian relief, welfare, community development, education and development, health, conservation, environmental protection, and advocacy activities to the extent they qualify under applicable law.

21.3 At least three persons who are not connected persons shall accept fiduciary responsibility for ASCO. No single person may directly or indirectly control ASCO's decision-making powers.

21.4 Funds shall be used solely for the objects for which ASCO is established. No funds or assets may be distributed directly or indirectly to any person except for reasonable remuneration, reimbursement of legitimate expenses, or payment for bona fide services rendered.

21.5 ASCO shall comply with the requirements applicable to approved public benefit organisations and shall submit amendments to its MOI or other founding documents to SARS when required by applicable law or SARS requirements.

21.6 Any section 18A approval is separate from this Constitution and the MOI. ASCO shall seek such approval only if it qualifies and obtains approval for the relevant activities. Nothing in this Constitution constitutes, or may be represented as, current SARS approval or authority to issue section 18A receipts.

## CHAPTER 22 — FOUNDER OVERSIGHT AND FINANCIAL INDEPENDENCE

22.1 Mrs Busisiwe Makhosi Shandu is recognised as Founder and Founding Chairperson and may provide strategic, ethical and institutional oversight to protect ASCO's founding vision.

22.2 The Founder/Founding Chairperson shall not sign, approve, authorise, initiate, co-authorise or control any financial document, bank mandate, payment, procurement approval, budget, invoice, grant disbursement, financial statement or other financial transaction of ASCO.

22.3 Financial authority shall rest with the Board, Finance and Procurement Committee, Treasurer/Director of Finance, Executive Director and formally appointed financial signatories, in accordance with Board resolutions and financial policies.

22.4 Founder recognition is honorary and historical and creates no ownership, personal financial benefit, unilateral veto, banking authority or power to bypass the Board, financial controls, SARS requirements or applicable law.

22.5 The Founder may sign constitutional, ceremonial or governance documents where appropriate, but such signature shall not be treated as a financial approval or financial mandate.

## CHAPTER 23 — DONOR, GRANT AND ANTI-PRIVATE-BENEFIT SAFEGUARDS

23.1 ASCO shall accept funding only where the purpose and conditions are lawful, consistent with its public-benefit objects, and do not compromise its independence or non-partisan character.

23.2 ASCO shall not accept a donation that may be revoked by the donor or that permits the donor or a connected person to obtain a direct or indirect benefit, except where permitted by law and consistent with an approved public benefit activity.

23.3 Restricted grants shall be tracked separately and used only for approved purposes. Donor reports shall be accurate, timely and supported by records.

23.4 ASCO shall conduct proportionate due diligence on donors, partners and major suppliers, maintain anti-fraud and anti-corruption controls, and report suspected misconduct through protected channels.

23.5 Donor requirements shall never override ASCO's legal duties, safeguarding obligations, independence or fiduciary accountability.

## CHAPTER 24 — SAFEGUARDING, ETHICS AND GLOBAL DONOR STANDARDS

24.1 ASCO shall maintain policies addressing safeguarding of children and vulnerable persons, prevention of sexual exploitation and abuse, anti-harassment, whistleblowing, conflicts of interest, procurement, data protection and complaints.

24.2 ASCO shall apply principles of transparency, accountability, participation, non-discrimination, do-no-harm, responsible stewardship and measurable results in its programmes and partnerships.

24.3 Staff, volunteers, Directors, consultants and representatives shall comply with the Code of Conduct and shall disclose actual, potential or perceived conflicts of interest.

24.4 ASCO shall maintain a complaints and incident-reporting mechanism and shall protect persons who report misconduct in good faith.

## CHAPTER 25 — FINANCIAL CONTROL AND REPORTING

25.1 The Founder/Founding Chairperson is expressly excluded from financial signing and approval authority.

25.2 The Board shall approve budgets, banking arrangements, financial policies, annual financial statements and material commitments.

25.3 At least two authorised signatories shall approve payments, subject to documented limits. No single person shall exercise unrestricted control over ASCO finances.

25.4 ASCO shall maintain books, records, supporting documents and audit trails for the periods required by law, SARS, donors and applicable standards.

25.5 The Board shall ensure annual financial statements and required tax, PBO, donor and regulatory reports are prepared and submitted.

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## ADOPTION

This Constitution was adopted by the founding members of the African Solidarity Civic Organisation (ASCO) and shall come into force on the date approved by the Board and members.

FINAL HARMONISATION NOTE — 10 September 2026
This governance version has been harmonised with ASCO's Board Charter, institutional portfolio, and public-facing organisational information, including the unified vision and mission, four-Director Board structure, distinction between statutory Directors and operational management roles, separation of governance and executive management, Board meeting frequency and quorum, MOI-aligned appointment and casting-vote provisions, Board committee and delegation principles, the Founder's exclusion from financial authority, and the conditional nature of any current SARS PBO approval under reference 930092287 and pending Section 18A approval. It is intended to operate subject to ASCO's MOI, applicable law, and formally approved Board resolutions. Where a public-facing summary differs from this Constitution, the MOI and this Constitution shall prevail to the extent permitted by law.

Updated: 2 October 2026 — PBO status and related current information harmonised.

22.7 SENIOR NON-DIRECTOR LEADERSHIP
The Board remains composed of exactly four Directors. The following are non-director senior-management positions and do not amend the MOI or CIPC Board: Treasurer & Finance Officer; Ms Angel Nokukhanya Gumede — Head of Humanitarian Affairs & Emergency Response; Ms Thando Mathe — Head of Social Protection, Inclusion & Safeguarding; and Mr Maguqu Meshack Mzimela — Head of Programmes, Research & Strategic Partnerships. Operational titles do not confer statutory Directorship. All positions remain subject to Board-approved delegation, policies and accountability.

## SIGNATURES OF THE FOUNDING MEMBERS / BOARD OF DIRECTORS

**CHAIR LADY**
**Ms. Busisiwe Makhosi Shandu**
Signature: _____
Date: **2 October 2026**

**DIRECTOR: HEAD OF ICT AND COMMUNICATIONS**
**Mr. Thapelo Nelson Maqalika**
Signature: _____
Date: **2 October 2026**

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**EXECUTIVE DIRECTOR**
**Mr. Bhekisisa Shandu**
Signature: _____
Date: **2 October 2026**
_____

**DIRECTOR: PEOPLE AND CULTURE / CHAIRPERSON: FINANCE AND PROCUREMENT COMMITTEE**
**Mr. Khulekani Gumede**
Signature: _____
Date: **2 October 2026**
_____